

Iconic Sports Eagle Investment, LLC v John Textor

[2026] EWHC 1498 (Comm); Case No: CL-2025-000308

High Court of Justice, King's Bench Division, Business and Property Courts of England and Wales, Commercial Court

Jurisdiction

England and Wales

Area of law

Contract law; Equity; Specific performance; Put option agreements

Legal question

Whether Iconic should be permitted to advance the 'Snell Point' argument that a claimant seeking specific performance need only be ready and willing to perform at the date of the order for specific performance (rather than the contractual completion date) where the defendant has repudiated the contract and the claimant has not accepted that repudiation. If permitted, whether this principle correctly states the law.

Key facts

Iconic entered into a Put Option Agreement dated 16 November 2022 with John Textor for the sale of a substantial minority shareholding in Eagle Football Holdings Limited (which holds interests in Olympique Lyonnais and Botafogo FR), with an aggregate option price exceeding US\$100 million. Mr Textor repudiated the agreement on 15 July 2024, but Iconic did not accept the repudiation. The contractual repayment date was 26 July 2024. HHJ Pelling KC found that the parties' obligations were concurrent conditions and that Iconic was ready and willing to perform on the repayment date, but Mr Textor was not. A share certificate required for performance was not in Iconic's possession at the preliminary issues trial but was disclosed by Mr Textor on 13 January 2026. Iconic initially pleaded that performance was required as at 26 July 2024 but later argued, citing Snell's Equity, that it need only be ready and willing at the date of any order for specific performance.

Holding

The court held that Iconic should be permitted to advance the Snell Point argument despite changing its case, as this would not constitute an abuse of process. The court found that applying a broad merits-based judgment, the unusual circumstances of phased litigation, the expedited nature of the preliminary issues trial, and the significant prejudice to Iconic (potentially losing a US\$100 million claim) weighed against barring the argument. The court further held that the proposition in Snell's Equity at [17-038] correctly states the law: a claimant seeking specific performance need only be ready and willing to perform at the date of the order for specific performance (not the contractual completion date) where the defendant has repudiated the contract and the claimant has not accepted that repudiation. The court distinguished between principles of contract law (where the contract remains alive for all purposes after unaccepted repudiation) and equitable principles governing specific performance (a flexible, discretionary remedy). The authorities, including *Davis v Spalding*, *Grant v Lapid Developments Ltd*, *Aymes International Ltd v Nutrition 4U BV*, and decisions from Australian and Hong Kong courts, all supported this principle based on fundamental fairness.

Significance

This judgment establishes that in English law, a party seeking specific performance of a contract is not absolutely required to prove it was ready and willing to perform on the contractual completion date if the counterparty had already repudiated the contract. This represents an important clarification of the equitable doctrine of specific performance and its relationship to contract law principles on repudiation. The decision has practical significance for parties enforcing contracts worth substantial sums where the counterparty repudiates before the completion date. The judgment clarifies that specific performance remains a flexible, discretionary equitable remedy that can be granted based on the parties' readiness and willingness at the date the order is made, provided the defendant repudiated and the claimant did not accept the repudiation.

Precedent impact

The judgment strongly affirms and extends the application of the principle established in *Davis v Spalding* (1974) and restated in *Snell's Equity*. It endorses the reasoning in *Grant v Lapid Developments Ltd*, *Aymes International Ltd v Nutrition 4U BV*, and *Wheatland v CL SPV 1 Ltd*, all of which applied this principle at first instance. The judgment also endorses the persuasive authority from the Hong Kong Court of Final Appeal in *Peggy v Lam* and the New South Wales Court of Appeal in *Sommers v Pearse*. The decision rejects the submission that the principle conflicts with modern contract law on repudiatory breach as established in *The Simona* and *Hitex v Uniserve Limited*, distinguishing between contract law principles and equitable remedies.

Full judgment URL

<https://www.bailii.org/ew/cases/EWHC/Comm/2026/1498.html>